

SOFTWARE SERVICE AGREEMENT

Acme Corp & Beta Technologies Ltd

Effective Date: January 1, 2024 | Contract ID: ACB-2024-0042

1. PARTIES

This Software Service Agreement ("Agreement") is entered into as of January 1, 2024, between Acme Corp, a Delaware corporation with its principal place of business at 123 Innovation Drive, San Francisco, CA 94105 ("Client"), and Beta Technologies Ltd, a UK private limited company registered at 45 Tech Park, London, EC2A 1NT ("Provider").

2. SERVICES

Provider agrees to deliver the following software engineering services to Client:

2.1 Development of a cloud-based document management platform ("Platform") as specified in Schedule A, including API integrations, a web dashboard, and mobile SDKs.

2.2 Ongoing maintenance and support, including bug fixes, security patches, and minor feature enhancements, for a period of 24 months from the go-live date.

2.3 A minimum of 99.9% monthly uptime SLA for all production services, measured as a rolling 30-day average, excluding scheduled maintenance windows communicated at least 72 hours in advance.

3. PAYMENT TERMS

3.1 The total contract value is USD 240,000, payable in monthly instalments of USD 10,000 over 24 months. The first payment is due on January 15, 2024, and each subsequent payment is due on the 15th of each calendar month.

3.2 All invoices must be settled within 30 days of the invoice date (Net-30). Payments outstanding beyond 30 days will accrue a late fee of 1.5% per month on the unpaid balance, compounded monthly.

3.3 Provider will submit invoices via email to accounts@acmecorp.com. Client must raise any invoice disputes within 10 business days of receipt, after which the invoice is deemed accepted.

3.4 All amounts are stated in US Dollars. If currency conversion is required, the exchange rate published by the European Central Bank on the invoice date shall apply.

4. INTELLECTUAL PROPERTY

4.1 All software, code, documentation, and deliverables created exclusively for Client under this Agreement shall be considered works made for hire and will vest in Client upon full payment of the corresponding milestone invoice.

4.2 Provider retains ownership of all pre-existing tools, frameworks, libraries, and general methodologies ("Background IP"). Provider grants Client a perpetual, royalty-free, non-exclusive licence to use Background IP solely as embedded in the deliverables produced under this Agreement.

4.3 Client warrants that all materials, data, and third-party assets provided to Provider do not infringe any intellectual property rights of any third party.

5. CONFIDENTIALITY

5.1 Each party ("Receiving Party") agrees to keep all non-public information disclosed by the other party ("Disclosing Party") strictly confidential and to use it solely for the purpose of performing its obligations under this Agreement.

5.2 The confidentiality obligation does not apply to information that: (a) is or becomes publicly known through no breach of this Agreement; (b) was already known to the Receiving Party before disclosure; or (c) is required to be disclosed by law or court order, provided the Receiving Party gives prompt written notice.

5.3 Both parties agree not to reverse-engineer, decompile, or disassemble any software provided under this Agreement.

6. TERMINATION

6.1 Either party may terminate this Agreement without cause by providing 60 days written notice to the other party. Notice must be sent via registered mail or verified email to the addresses listed in Section 1.

6.2 Either party may terminate immediately for cause if: (a) the other party materially breaches this Agreement and fails to cure the breach within 30 days of written notice; or (b) the other party becomes insolvent or enters bankruptcy.

6.3 Upon termination, all outstanding invoices for work completed become immediately due and payable. Provider will deliver all completed work product to Client within 14 days of the termination effective date.

7. LIABILITY AND INDEMNIFICATION

7.1 Provider's total aggregate liability under this Agreement, whether in contract, tort, or otherwise, shall not exceed the total fees paid by Client in the 12 months immediately preceding the event giving rise to the claim.

7.2 Neither party shall be liable for any indirect, incidental, special, consequential, or punitive damages, including lost profits or data, even if advised of the possibility of such damages.

7.3 Client agrees to indemnify and hold harmless Provider from any claims, damages, or costs arising from Client's misuse of the Platform or violation of applicable law.

8. DATA PROTECTION

8.1 Provider will process all personal data in accordance with the EU General Data Protection Regulation (GDPR) and the UK Data Protection Act 2018. Provider acts as a Data Processor; Client acts as the Data Controller.

8.2 Provider shall implement appropriate technical and organisational measures to protect personal data against unauthorised access, including AES-256 encryption at rest and TLS 1.3 in transit.

8.3 In the event of a data breach affecting Client's personal data, Provider shall notify Client within 72 hours of becoming aware of the breach.

9. SCHEDULE A — PAYMENT MILESTONES

Milestone	Deliverable	Due Date	Amount (USD)
M1	Architecture design & API spec	Feb 15, 2024	\$30,000
M2	Core platform backend (v1)	Apr 15, 2024	\$50,000
M3	Web dashboard (beta)	Jun 15, 2024	\$40,000
M4	Mobile SDK (iOS + Android)	Aug 15, 2024	\$40,000
M5	Security audit & penetration test	Sep 15, 2024	\$20,000
M6	Production go-live & UAT signoff	Oct 15, 2024	\$30,000
M7–M18	Monthly maintenance (12 months)	Monthly	\$30,000

10. GOVERNING LAW & DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, USA, without regard to its conflict of law provisions. Any dispute arising under this Agreement shall first be subject to good-faith negotiation for 30 days, followed by binding arbitration

under the AAA Commercial Arbitration Rules.

SIGNATURES

For Acme Corp (Client)

Name: Sarah Chen

Title: Chief Technology Officer

Date: _____

For Beta Technologies Ltd (Provider)

Name: Raj Patel

Title: Chief Executive Officer

Date: _____